

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

JOSE MENDOZA,

Plaintiff,

-against-

CITY OF NEW YORK; MICHAEL DAMICO;  
JAMES COFFEY; and JOHN and JANE DOE  
1-10,

Defendants.

SUMMONS

Index No.:

The Basis of Venue is:  
Location of Incident

Plaintiff designates Kings  
County as the place of trial.

To the above-named defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with the summons, to serve a notice of appearance, on the plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

The nature of this action is, *inter alia*, malicious prosecution, fabrication of evidence and personal injuries sustained as a result of the defendants' negligence, recklessness and intentional conduct. The relief sought is monetary damages.

Dated:           October 24, 2023  
                    New York, New York

**ELEFTERAKIS, ELEFTERAKIS & PANEK**

  
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By: Gabriel P. Harvis, Esq.  
*Attorneys for plaintiff*  
80 Pine Street, 38<sup>th</sup> Floor  
New York, New York 10005  
(212) 532-1116

**Failure to respond will result in a judgment against you by default and interest from July 27, 2022.**

**Defendants:**

**CITY OF NEW YORK**

100 Church Street  
New York, New York

Detective Michael Damico  
Tax #932511  
60<sup>th</sup> Precinct Detective Squad  
2951 W 8th St  
Brooklyn, NY 11224

Detective James Coffey  
Tax #917437  
Brooklyn South Homicide Squad  
1 Police Plaza  
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

JOSE MENDOZA,

Plaintiff,

-against-

CITY OF NEW YORK; MICHAEL DAMICO;  
JAMES COFFEY; and JOHN and JANE DOE  
1-10,

Defendants.

**VERIFIED COMPLAINT**

Index No.:

Plaintiff Jose Mendoza, by his attorneys, ELEFTERAKIS, ELEFTERAKIS & PANEK, as and for this Verified Complaint, respectfully alleges, upon information and belief:

**JURISDICTION AND VENUE**

1. One or more of the exceptions of § 1602 of the Civil Practice Law and Rules apply to this action.
2. This action is brought pursuant to the laws of the City and State of New York and the U.S. Constitution.
3. Jurisdiction is conferred by the laws of the State of New York.
4. Within ninety (90) days after the claim arose, plaintiff served, presented, and duly filed a Notice of Claim, in writing, upon defendants in accordance with General Municipal Law 50-e, and which set forth the following:

- a. The nature of the claims;
- b. The time when, place where, and manner in which the claim arose;  
and
- c. The items of damages and injuries sustained.

5. That more than thirty (30) days have elapsed since the presentation of the aforesaid claims, and defendants have neglected and/or refused to make an adjustment and/or payment on plaintiff's claims.

6. Pursuant to G.M.L. § 50-h, the City of New York examined plaintiff on May 4, 2023.

7. That the action has been commenced within one year and ninety days of the accrual of the cause of action.

### **JURY DEMAND**

8. Plaintiff demands a trial by jury in this action.

### **PARTIES**

9. Plaintiff Jose Mendoza is a resident of the State of New York.

10. Defendant City of New York ("City") is a municipal corporation organized under the laws of the State of New York. Defendant City, acting through the New York Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for

the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel. In addition, at all times here relevant, defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

11. At all times relevant the individual defendants were Police Officers and/or supervisors involved in the illegal conduct set forth herein that deprived plaintiff of his rights. The individual defendants are sued in their individual capacities and as employees of defendant City.

12. At all times relevant defendants John and Jane Doe 1 through 10 were Police Officers and/or supervisors involved in the illegal conduct set forth herein that deprived plaintiff of his rights. John and Jane Doe 1-10 are sued in their individual capacities and as employees of defendant City.

13. At all times relevant herein, all individual defendants were acting under color of state law and in the scope of their employment.

### **STATEMENT OF FACTS**

14. On the evening of February 7, 2020, Ruby Brown strangled Leslie Lee, an elderly Vietnam veteran, killing him inside Brown's apartment at 2331 West 11<sup>th</sup> Street in Brooklyn, New York.

15. When Lee's death was ultimately reported by a third party, Brown, who had moved the body post-mortem and whose DNA was on the victim's neck, lied to the responding officers about the circumstances of Lee's death.

16. NYPD investigators, including the individual defendants, ignored obvious evidence of Brown's guilt and wrongly turned their focus to plaintiff, who had been in Brown's apartment before the crime happened and was provably innocent.

17. On March 5, 2020, defendants arrested plaintiff and aggressively interrogated him inside a police precinct, discouraging plaintiff from invoking his right to counsel and employing psychological pressure to encourage plaintiff to falsely confess.

18. Plaintiff, however, truthfully denied any involvement in the crime and was forthcoming with defendants.

19. Defendants publicized plaintiff's arrest and provided his photograph to the news media, falsely portraying plaintiff, who had no criminal record and is a loving father of three young daughters, as the murderer of a beloved veteran. *See, e.g.,* Goldberg, Noah, et al., N.Y. DAILY NEWS, *Man charged with killing beloved Vietnam War vet, choking victim's friend inside Brooklyn apartment*, March 6, 2020 (accessible at: <https://www.nydailynews.com/2020/03/06/man-charged-with-killing-beloved-vietnam-war-vet-choking-victims-friend-inside-brooklyn-apartment/>).

20. Lacking any evidence of plaintiff's guilt, defendants coached Ruby Brown, the perpetrator, to falsely accuse plaintiff of strangling Lee, and defrauded the Kings County District Attorney's office and a Kings County grand jury by presenting Brown's manufactured testimony as valid and withholding exculpatory evidence, resulting in plaintiff's indictment on murder charges on April 2, 2020.

21. In a further injustice, Brown was granted immunity for her false testimony before the grand jury.

22. Approximately three months later, on July 8, 2020, the Office of the Chief Medical Examiner notified defendants that DNA analysis exonerated plaintiff.

23. Nevertheless, defendants continued the prosecution of plaintiff.

24. Despite the lack of evidence of plaintiff's guilt and the clear evidence of Brown's guilt, plaintiff remained in custody until he was released on his own recognizance on September 10, 2021, a period of eighteen months and five days that overlapped with the most acute phase of the COVID pandemic.

25. The charges against plaintiff were dismissed on July 27, 2022.

26. By reason of the foregoing, plaintiff suffered damage as a result of defendants' actions. Plaintiff suffered, *inter alia*, loss of liberty, pain and suffering, fear, pain, bodily injury, emotional distress, lost wages, loss of reputation, loss of consortium, loss of familial relationships, mental anguish, depression, humiliation and anxiety.

**FIRST CLAIM****Malicious Prosecution under State and Federal Law**

27. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

28. By their conduct, as described herein, the defendants are liable to plaintiff for having maliciously prosecuted plaintiff.

29. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

**SECOND CLAIM****Fabrication of Evidence**

30. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

31. By their conduct, as described herein, the defendants are liable to plaintiff for having fabricated false evidence against plaintiff and forwarding it to prosecutors, in violation of the Fifth, Sixth and Fourteenth Amendments.

32. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.



**THIRD CLAIM****Negligence; Negligent Hiring/Training/Retention**

33. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

34. Defendant City, through the NYPD, owed a duty of care to plaintiff to prevent the conduct alleged, because under the same or similar circumstances a reasonable, prudent, and careful person should have anticipated that injury to plaintiff or to those in a like situation would probably result from the foregoing conduct.

35. Upon information and belief, all of the individual defendants were unfit and incompetent for their positions.

36. The individual defendants' conduct, including the manner of pursuit and apprehension of plaintiff, was negligent, grossly negligent, reckless and intentional.

37. Upon information and belief, defendant City knew or should have known through the exercise of reasonable diligence that the individual defendants were potentially dangerous.

38. Upon information and belief, defendant City's negligence in screening, hiring, training, disciplining, and retaining these defendants and the individual defendants' own negligence proximately caused each of plaintiff's injuries.

39. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

**FOURTH CLAIM****Negligent or Intentional Infliction of Emotional Distress**

40. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

41. By reason of the foregoing, the defendants, acting in their capacities as NYPD officers, and within the scope of their employment, each were negligent (or intentional) in committing conduct that inflicted emotional distress upon plaintiff.

42. The negligent (or intentional) infliction of emotional distress by these defendants was unnecessary and unwarranted in the performance of their duties as NYPD officers.

43. Defendants, their officers, agents, servants, and employees were responsible for the negligent (or intentional) infliction of emotional distress upon plaintiff. Defendant City, as employer of each of the defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

44. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

**FIFTH CLAIM****Violation of Plaintiff's Administrative Code § 8-802 Rights**

45. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

46. The actions of defendants violated plaintiff's rights as defined in Section 8-802 of Chapter 8 of the New York City Administrative Code.

47. As such, immunity is not a defense to the violations of plaintiff's rights and plaintiff demands and is entitled to the relief described in Section 8-805.

48. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

**SIXTH CLAIM**  
**Defamation**

49. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

50. By their conduct, as described herein, defendants are liable to plaintiff for having committed defamation under the laws of the State of New York.

51. Defendants made false, disparaging and public statements about plaintiff, including but not limited to casting plaintiff as a murderer.

52. Defendants' conduct in making such false, disparaging and public statements was intentional or at the very least negligent.

53. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged, including but not limited to damage and dishonor to his reputation, as well as causing extreme emotional distress.

54. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

**SEVENTH CLAIM**

**Failure to Intervene**

55. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

56. Those individual defendants who were present had a reasonable opportunity to intervene and an affirmative obligation to do so but failed to act, rendering them liable to plaintiff.

57. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

**EIGHTH CLAIM**

**Punitive Damages & Attorney's Fees**

58. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

59. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

60. Accordingly, plaintiff is entitled to punitive damages.

**PRAYER FOR RELIEF**

WHEREFORE, plaintiff respectfully requests judgment for an amount which exceeds the jurisdictional limits of all other Courts which would otherwise have jurisdiction herein against defendants as follows:

- (a) Compensatory damages against all defendants, jointly and severally;
- (b) Punitive damages against the individual defendants, jointly and severally;
- (c) Reasonable attorneys' fees and costs, and with interest from the date of the incident;
- (d) All relief afforded under Section 8-805 of Chapter 8 of the New York City Administrative Code; and
- (e) Such other and further relief as this Court deems just and proper.

Dated:           October 24, 2023  
                  New York, New York

**ELEFTERAKIS, ELEFTERAKIS & PANEK**

  
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By: Gabriel P. Harvis, Esq.  
*Attorneys for plaintiff*  
80 Pine Street, 38<sup>th</sup> Floor  
New York, New York 10005  
(212) 532-1116

ATTORNEY'S VERIFICATION

STATE OF NEW YORK       )  
                                          ) SS:  
COUNTY OF NEW YORK    )

The undersigned, an attorney admitted to practice in the Courts of the State of New York, and an attorney of the law firm of ELEFTERAKIS, ELEFTERAKIS, & PANEK attorneys of record for the claimant herein, affirms:

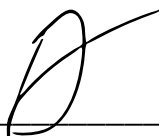
That he has read the attached SUMMONS AND COMPLAINT and the same is true to his own knowledge, except as to the matters alleged on information and belief, and as to those matters, he believes them to be true to the best of his knowledge.

That affirmant's sources of information are investigation and files maintained in your affirmant's law office.

That this verification is made by your affirmant due to the fact that claimant does not presently reside within the county in which your affirmant maintains his law office or is presently outside the county in which your affirmant maintains his law office.

The undersigned affirms that the foregoing statements are true, under penalties of perjury.

Dated: October 24, 2023  
New York, New York

  
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Gabriel P. Harvis, Esq.